

## Syllabus

future litigation stemming from those actions, that concern does not support immunity for *unofficial* conduct. *Clinton*, 520 U. S., at 694, and n. 19. The separation of powers does not bar a prosecution predicated on the President's unofficial acts. Pp. 615–616.

(b) The first step in deciding whether a former President is entitled to immunity from a particular prosecution is to distinguish his official from unofficial actions. In this case, no court thus far has drawn that distinction, in general or with respect to the conduct alleged in particular. It is therefore incumbent upon the Court to be mindful that it is “a court of final review and not first view.” *Zivotofsky v. Clinton*, 566 U. S. 189, 201. Critical threshold issues in this case are how to differentiate between a President's official and unofficial actions, and how to do so with respect to the indictment's extensive and detailed allegations covering a broad range of conduct. The Court offers guidance on those issues. Pp. 616–632.

(1) When the President acts pursuant to “constitutional and statutory authority,” he takes official action to perform the functions of his office. *Fitzgerald*, 456 U. S., at 757. Determining whether an action is covered by immunity thus begins with assessing the President's authority to take that action. But the breadth of the President's “discretionary responsibilities” under the Constitution and laws of the United States frequently makes it “difficult to determine which of [his] innumerable ‘functions’ encompassed a particular action.” *Id.*, at 756. The immunity the Court has recognized therefore extends to the “outer perimeter” of the President's official responsibilities, covering actions so long as they are “not manifestly or palpably beyond [his] authority.” *Blassingame v. Trump*, 87 F. 4th 1, 13 (CADC).

In dividing official from unofficial conduct, courts may not inquire into the President's motives. Such a “highly intrusive” inquiry would risk exposing even the most obvious instances of official conduct to judicial examination on the mere allegation of improper purpose. *Fitzgerald*, 457 U. S., at 756. Nor may courts deem an action unofficial merely because it allegedly violates a generally applicable law. Otherwise, Presidents would be subject to trial on “every allegation that an action was unlawful,” depriving immunity of its intended effect. *Ibid.* Pp. 617–619.

(2) With the above principles in mind, the Court turns to the conduct alleged in the indictment. Certain allegations—such as those involving Trump's discussions with the Acting Attorney General—are readily categorized in light of the nature of the President's official relationship to the office held by that individual. Other allegations—such as those involving Trump's interactions with the Vice President, state officials, and certain private parties, and his comments to the general public—present more difficult questions. Pp. 619–630.